



CHAPTER lxx.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Glasgow Subway Railway. A.D. 1914.
—
[8th July 1914.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Glasgow Subway Railway Order Confirmation Act 1914. Short title.

that Act authorised to the extent of ten thousand pounds and by the capitalised value of feu duties and ground annuities payable by the Company amounting to the further sum of twenty-three thousand six hundred and seven pounds of which loan capital the sum of twenty-two thousand seven hundred and forty-three pounds has been repaid but may be re-borrowed by the Company and the sum of one hundred and thirty-one thousand one hundred and fifty pounds is now outstanding and fell due and was repayable to the holders thereof on the fifteenth day of May one thousand nine hundred and fourteen: A.D. 1914.

And whereas the Company also raised the whole of the additional capital authorised by the Act of 1894 by the issue of preference shares of the nominal value of ten pounds each redeemable as in that Act provided of which ninety-nine thousand three hundred pounds have been redeemed under the provisions of that Act:

And whereas the Company have found it impossible to raise the additional capital of two hundred thousand pounds authorised by the Act of 1899 by the issue either of new ordinary shares or stock or new preference shares or stock:

And whereas the whole of the share capital authorised by the Act of 1890 and the aforesaid sum of one hundred and thirty-one thousand one hundred and fifty pounds of loan capital now outstanding as aforesaid and the whole of the additional capital authorised by and raised under the Act of 1894 amounting together to the sum of one million four hundred and thirty-one thousand one hundred and fifty pounds have been expended upon the undertaking of the Company but the purchase of lands for and the completion and equipment of the subways and relative works have required an expenditure in excess thereof (after deducting the available re-borrowing powers amounting as aforesaid to twenty-two thousand seven hundred and forty-three pounds) of one hundred and forty-four thousand one hundred and ninety pounds seven shillings and fivepence which has been raised by the Company by temporary loans and otherwise:

And whereas the Company have not created or issued any debenture stock:

And whereas it is expedient that the Company should be authorised to raise additional money by mortgages or debenture stock to enable them to extinguish the balance at the debit of the Company's capital account and pay off the said temporary loans and for the general purposes of the undertaking not exceeding in the whole the sum of one hundred and fifty thousand pounds:

And whereas by the Act of 1894 the period during which the Company may hold the surplus lands and properties of the Company was extended for thirty-five years from the passing of that Act and it

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A.D. 1914. is expedient that the time during which the Company may hold such surplus lands and properties should be further extended:

And whereas doubts have arisen as to whether the Company is a railway company and it is expedient that such doubts should be removed:

And whereas the Company are desirous and it is expedient that their name should be changed:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

Short title
and citation
of Acts and
Order.

1.—(1) This Order may for all purposes be cited as the Glasgow Subway Railway Order 1914.

(2) The Act of 1890 the Act of 1894 the Act of 1899 and this Order may be cited together for all purposes as the Glasgow Subway Railway Acts 1890 to 1914.

Commence-
ment of
Order.

2. This Order shall commence and have effect on and from the date of the passing of the Act confirming the same which date is herein-after referred to as “the commencement of this Order.”

Incorpora-
tion of Acts.

3. The following Acts and parts of Acts are except where expressly varied by or inconsistent with this Order incorporated with and form part of this Order (that is to say) the Companies Clauses Consolidation (Scotland) Act 1845 with respect to the borrowing of money by the Company on mortgage or bond and Part III. (relating to debenture stock) and Part IV. (relating to change of name) of the Companies Clauses Act 1863 as amended by the Companies Clauses Act 1869 and any subsequent Acts.

Interpreta-
tion.

4. In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction and in the Acts wholly or partially incorporated with this Order as applied to this Order the expression “the Company” means the Glasgow Subway Railway Company the expression “the special Act” means this Order the expression “the undertaking” means the subways or underground railways and works in connection therewith and the undertaking by the Act of 1890 the Act of 1894 the Act of 1899 and this Order authorised.

Change of
Company's
name.

5.—(1) The corporate name of the Company shall from and after the commencement of this Order be “The Glasgow Subway Railway

Company" instead of their present name of "The Glasgow District
 Subway Company." A.D. 1914.

(2) The Company shall be deemed to be and always to have been
 a railway company.

6. In addition to the money which the Company are already
 authorised to borrow by the Act of 1890 the Company may subject
 to the provisions of this Order and for the purposes of this Order
 borrow on mortgage of the undertaking such further sums of money
 as they think fit not exceeding in the aggregate the sum of one
 hundred and fifty thousand pounds. Power to borrow further moneys.

7. Section 21 (For appointment of a judicial factor) of the Act of
 1890 is hereby repealed but without prejudice to any appointment
 made or proceedings pending under that section prior to the commence-
 ment of this Order The mortgagees of the undertaking may enforce
 payment of arrears of interest or principal or principal and interest
 due on their mortgages by the appointment of a judicial factor In
 order to authorise the appointment of a judicial factor in respect of
 arrears of principal the amount owing to the mortgagees by whom the
 application for a judicial factor is made shall not be less than ten
 thousand pounds in the whole. For appointment of a judicial factor.

8. The Company may subject to the provisions of Part III. of the
 Companies Clauses Act 1863 as amended by the Companies Clauses
 Act 1869 and any subsequent Acts create and issue debentures or
 debenture stock ranking after the debenture stock authorised to be
 created and issued by the Act of 1890 to such nominal amount and
 bearing interest at such rate as the Company may think fit as will at
 the price at which and subject to the terms and conditions on which
 the same shall be issued be sufficient to raise the money by this Order
 authorised to be borrowed or any part thereof but notwithstanding
 anything contained in the said Acts the interest of all mortgages
 debentures and debenture stock at any time after the commencement
 of this Order granted or created and issued by the Company under
 the Act of 1890 or under this or any subsequent Order or Act shall
 subject to the provisions of any subsequent Order or Act rank pari
 passu (without respect to the dates of the securities or of the Acts
 of Parliament or Orders or resolutions by which such mortgages
 debentures or debenture stock were authorised) and shall have priority
 over all principal moneys secured by such mortgages debentures or
 debenture stock Notice of the effect of this enactment shall be endorsed
 on all mortgages and debentures and certificates of debenture stock
 The debenture stock authorised to be created and issued by the Act
 of 1890 shall be known as "first debenture stock" and the debenture
 stock authorised to be created and issued by this Order shall be known
 as "second debenture stock." Debenture stock.

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- A.D. 1914. 9. The principal moneys secured by all mortgages granted and all debenture stock that may hereafter be created and issued by the Company in pursuance of the powers of the Act of 1890 shall during the continuance of such mortgages and debenture stock have priority over the principal moneys secured by any mortgages debentures or debenture stock granted or created and issued by the Company by virtue of this Order but nothing in this section contained shall affect any priority of the interest of any mortgages debentures or debenture stock at any time granted or created and issued by the Company.
- Priority of principal moneys raised under Act of 1890.
- Application of moneys. 10. The moneys borrowed or raised by the Company under the powers of this Order shall be applied in extinguishing the balance at the debit of the capital account of the Company at the commencement of this Order and for the general purposes of the Company's undertaking to which capital is properly applicable and not otherwise.
- Powers to trustees executors &c. 11. Trustees executors administrators and all other holders in any representative or fiduciary capacity of existing mortgages of the Company are hereby expressly authorised in exchange therefor or in substitution thereof to apply for accept and hold any debenture stock issued under the Act of 1890 or any mortgages debentures or debenture stock granted or issued under this Order and may and shall hold dispose of or otherwise deal with the same in all respects as they might have held disposed of or otherwise dealt with the existing mortgages for which such debenture stock mortgages debentures or debenture stock were exchanged or substituted Provided that nothing in this section shall authorise any trustee to accept or hold any security which by the terms of any trust deed he is forbidden to accept or hold.
- Further extension of time for holding and sale of surplus lands. 12. Notwithstanding the provisions of the Lands Clauses Consolidation (Scotland) Act 1845 with regard to superfluous lands section 15 (Repeal of sections 77 and 78 of Act of 1890 and management of surplus lands) of the Act of 1894 shall be read as if the words "fifty-six years" had been therein inserted instead of the words "thirty-five years" occurring in subsections (A) and (B) of that section.
- Interest not to be paid out of capital. 13. No interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Order or Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Order shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation (Scotland) Act 1845.
- Deposits for future Orders or Bills not to be paid out of capital. 14. The Company shall not out of any money by the Act of 1890 the Act of 1894 the Act of 1899 or this Order authorised to be raised pay or deposit any sum which by any general order for the regulation

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of proceedings under and in pursuance of the Private Legislation Procedure (Scotland) Act 1899 or any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to the Secretary for Scotland for a Provisional Order or to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking. A.D. 1914.

15. Nothing in this Order contained shall exempt the Company or the railways of the Company from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company. Provision as to general Railway Acts.

16. All costs charges and expenses of and incident to the preparing and applying for and the issue of this Order and the confirmation thereof by Parliament or otherwise in relation thereto shall be paid by the Company. Costs of Order.

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